

California Regional Water Quality Control Board
North Coast Region

Order No. 98-4
ID No. 1A771410SIS

Waste Discharge Requirements

For

City of Dorris

Siskiyou County

The California Regional Water Quality Control Board, North Coast Region, (hereinafter the Regional Water Board) finds that:

1. The City of Dorris (hereinafter the discharger) owns and operates waste treatment and disposal facilities which are located in northeastern Butte Valley within the NE 1/4 of Section 36, T48N, R1W, MDB&M as shown on Attachment "A", incorporated herein and made a part of this Order.
2. The wastewater treatment facilities consist of a gravity sewer with one lift station followed by three oxidation-percolation-evaporation ponds for final disposal with no provisions for surface discharge. The ponds have a design capacity of 120,000 gallons per day. Current dry weather flows (June through October) average 76,000 gallons per day.
3. Butte Valley is a closed basin with no natural surface water outflow. A man-made pumping facility exists at Meiss Lake which is the "sump" of the valley. During periods of high rainfall, excess water is pumped from Meiss Lake to the Klamath River via Rock Creek.
- 4.. The Regional Water Board Water Quality Control Plan for the North Coast Region includes water quality objectives, a prohibition against discharge to the Klamath River and receiving water limitations.
5. The beneficial uses of the Klamath River and its tributaries include:
 - a. municipal and domestic supply
 - b. agricultural supply
 - c. industrial supply
 - d. groundwater recharge
 - e. freshwater replenishment
 - f. water contact recreation
 - g. noncontact water recreation
 - h. warm freshwater habitat

- i. cold freshwater habitat
 - j. wildlife habitat
 - k. fish migration
 - l. fish spawning
6. Beneficial uses of areal groundwaters include:
 - a. municipal water supply
 - b. domestic water supply
 - c. agricultural water supply
7. The discharge is presently governed by Waste Discharge Requirements Order No. 85-68, adopted by the Regional Water Board on May 23, 1985.
8. This project is exempt from provisions of the California Environmental Quality Act of 1970 as an existing facility. (Title 14, Division 7, Chapter 3, Section 15301, California Code of Regulations)
9. The Regional Water Board has notified the discharger and interested agencies and persons of its intent to prescribe waste discharge requirements for the discharge and has provided them with an opportunity to submit their written comments and recommendations.
10. The Regional Water Board, in a public meeting, heard and considered all comments pertaining to the discharge.

THEREFORE, IT IS HEREBY ORDERED that Waste Discharge Requirements Order No. 85-68 be rescinded and the discharger, in order to meet the provisions contained in Division 7 of the California Water Code and regulations adopted thereunder, shall comply with the following:

A. DISCHARGE PROHIBITIONS

1. The discharge of waste to any drainageway tributary to Meiss Lake is prohibited.
2. The discharge of any waste not specifically regulated by this Order is prohibited.
3. Creation of a pollution, contamination, or nuisance, as defined by Section 13050 of the California Water Code (CWC), is prohibited. [Health and Safety Code, Section 54111]
4. The discharge of sludge or digester supernatant is prohibited.
5. The discharge of untreated waste from anywhere within the collection, treatment, or disposal facility is prohibited.

6. The discharge of waste to land which is not owned or controlled by the discharger is prohibited except as provided in **SOLIDS DISPOSAL C. 1.**, below.

B. DISCHARGE SPECIFICATIONS

1. Waste ponded within the percolation/evaporation ponds shall not have a dissolved oxygen content of less than 1.0 mg/l.
2. Discharge to percolation ponds shall be terminated when the freeboard decreases to 1.0 feet.
3. The discharge of waste shall not cause a pollution of groundwater.
4. The mean daily dry weather flow of waste shall not exceed 120,000 gallons per day.

C. SOLIDS DISPOSAL

1. Collected screenings, sludges, and other solids removed from liquid wastes shall be disposed of at a legal point of disposal, and in accordance with the provisions of Title 27, of the California Code of Regulations or as waived pursuant to Section 13269 of the California Water Code.

D. PROVISIONS

1. A copy of this Order shall be maintained at the discharge facility and be available at all times to operating personnel.

2. Severability

Provisions of these waste discharge requirements are severable. If any provision of these requirements is found invalid, the remainder of these requirements shall not be affected.

3. Operation and Maintenance

The discharger must maintain in good working order and operate as efficiently as possible any facility or control system installed by the discharger to achieve compliance with the waste discharge requirements.

4. Change in Discharge

The discharger must promptly report to the Regional Water Board any material change in the character, location, or volume of the discharge.

5. Change in Ownership

In the event of any change in control or ownership of land or waste discharge facilities presently owned or controlled by the discharger, the discharger must notify the succeeding owner or operator of the existence of this Order by letter, a copy of which must be forwarded to this office.

6. Vested Rights

This Order does not convey any property rights of any sort or any exclusive privileges. The requirements prescribed herein do not authorize the commission of any act causing injury to persons or property, nor protect the discharger from his liability under federal, State, or local laws, nor create a vested right for the discharger to continue the waste discharge.

7. Monitoring

The discharger must comply with the Contingency Planning and Notification Requirements Order No. 74-151 and the Monitoring and Reporting Program No. 98-4 and any modifications to these documents as specified by the Executive Officer. Such documents are attached to this Order and incorporated herein.

8. Inspections

The discharger shall permit authorized staff of the Regional Water Board:

- a. entry upon premises in which an effluent source is located or in which any required records are kept;
- b. access to copy any records required to be kept under terms and conditions of this Order;
- c. inspection of monitoring equipment or records; and
- d. sampling of any discharge.

9. Noncompliance

In the event the discharger is unable to comply with any of the conditions of this Order due to:

- a. breakdown of waste treatment equipment;
- b. accidents caused by human error or negligence; or
- c. other causes such as acts of nature;

the discharger must notify the Executive Officer by telephone as soon as he or his agents have knowledge of the incident and confirm this notification in writing within two weeks of the telephone notification. The written notification shall include pertinent information explaining reasons for the noncompliance and shall indicate the steps taken to correct the problem and the dates thereof, and the steps being taken to prevent the problem from recurring.

10. Revision of Requirements

This Regional Water Board requires the discharger to file a report of waste discharge at least 120 days before making any material change or proposed change in the character, location, or volume of the discharge.

11. National Pretreatment Standards: Prohibited Discharges

- a. General prohibitions. Pollutants introduced into POTWs by a non-domestic source shall not pass-through [40 CFR403.3(n)] the POTW or interfere [40 CFR 403.3(i)] with the operation or performance of the works. These general prohibitions and the specific prohibitions in paragraph (b) of this provision apply to all non-domestic sources introducing pollutants into a POTW whether or not the source is subject to other National Pretreatment Standards or any national, state, or local Pretreatment Requirements.
- b. Specific prohibitions. In addition, the following pollutants shall not be introduced into a POTW:
 - i. Pollutants which create a fire or explosion hazard in the POTW;
 - ii. Pollutants which will cause corrosive structural damage to the POTW, but in no case discharges with pH lower than 5.0, unless the works is specifically designed to accommodate such discharges;
 - iii. Solid or viscous pollutants in amounts which will cause obstruction to the flow in the POTW resulting in interference:
 - iv. Any pollutant, including oxygen demanding pollutants (BOD, etc.) released in a discharge at a flow rate and/or pollutant concentration which will cause interference with the POTW; and
 - v. Heat in amounts which will inhibit biological activity in the POTW resulting in interference, but in no case heat in such quantities that the temperature at the POTW Treatment Plant exceeds 40 ° C (104 ° F) unless the Regional Water Board upon request of the POTW approves alternate temperature limits.
 - vi. Petroleum oil, nonbiodegradable cutting oil, or products of mineral oil origin in amounts that will cause interference or pass through;
 - vii. Pollutants which results in the presence of toxic gases, vapors, or fumes within the POTW in a quantity that may cause acute worker health and safety problems;

- viii. Any trucked or hauled pollutant, except at discharge points designated by the POTW.
- c. When specific limits must be developed by a POTW.
 - i. POTWs developing POTW Pretreatment Programs pursuant to 40 CFR 403.8 shall develop and enforce specific limits to implement the prohibitions listed in paragraphs (a) and (b) of this provision.
 - ii. All POTWs shall, in cases where pollutants contributed by User(s) result in interference or pass-through, and such violation is likely to recur, develop and enforce specific effluent limits for Industrial User(s), and all other users, as appropriate, which, together with appropriate changes in the POTW Treatment Plant's facilities or operations, are necessary to ensure renewed and continued compliance with the POTW's Order or sludge use or disposal practices.
 - iii. Specific effluent limits shall not be developed and enforced without individual notice to persons or groups who have requested such notice and an opportunity to respond.
- d. Local limits. Where specific prohibitions or limits on pollutants or pollutant parameters are developed by a POTW in accordance with paragraph (c) above, such limits shall be deemed Pretreatment Standards for the purposes of Section 307(d) of the Clean Water Act. [40 CFR 403.5(a) through (d)]

Certification

I, Lee A. Michlin, Executive Officer, do hereby certify that the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, North Coast Region, on February 26, 1998.



Lee A. Michlin
Executive Officer

California Regional Water Quality Control Board
North Coast Region

Monitoring and Reporting Program No. 98-4

For

City of Dorris

Siskiyou County

DISPOSAL AREA MONITORING

- A. The average daily flow of waste shall be recorded daily.
- B. Measurements of pond freeboard levels shall be taken and recorded for monthly reporting to the Regional Water Board.
- C. The discharger shall record facility maintenance activities (such as weed removal and pond cleaning) and the results of weekly observations which describe the percolation beds and document the appearance, if any, of surface runoff, ponded areas, or unusual conditions.
- D. At times when waste is ponded within the ponds, a representative sample shall be collected monthly during the early morning hours and analyzed for dissolved oxygen content.
- E. The quantity of septage disposal directly to the ponds shall be recorded by the operator with the name and license number of the septage pumper.

REPORTING

Monthly monitoring reports shall be submitted to the Regional Water Board by the 15th day of the following month. In reporting the monitoring data, the discharger shall arrange the data in tabular form on a 8 1/2 by 11 inch sheet so that the date, measurements and observations are descriptive of conditions of the facilities. The monitoring and any necessary narrative reports shall be properly titled and referenced to this Order and signed by the responsible official of the discharger.

Ordered by _____

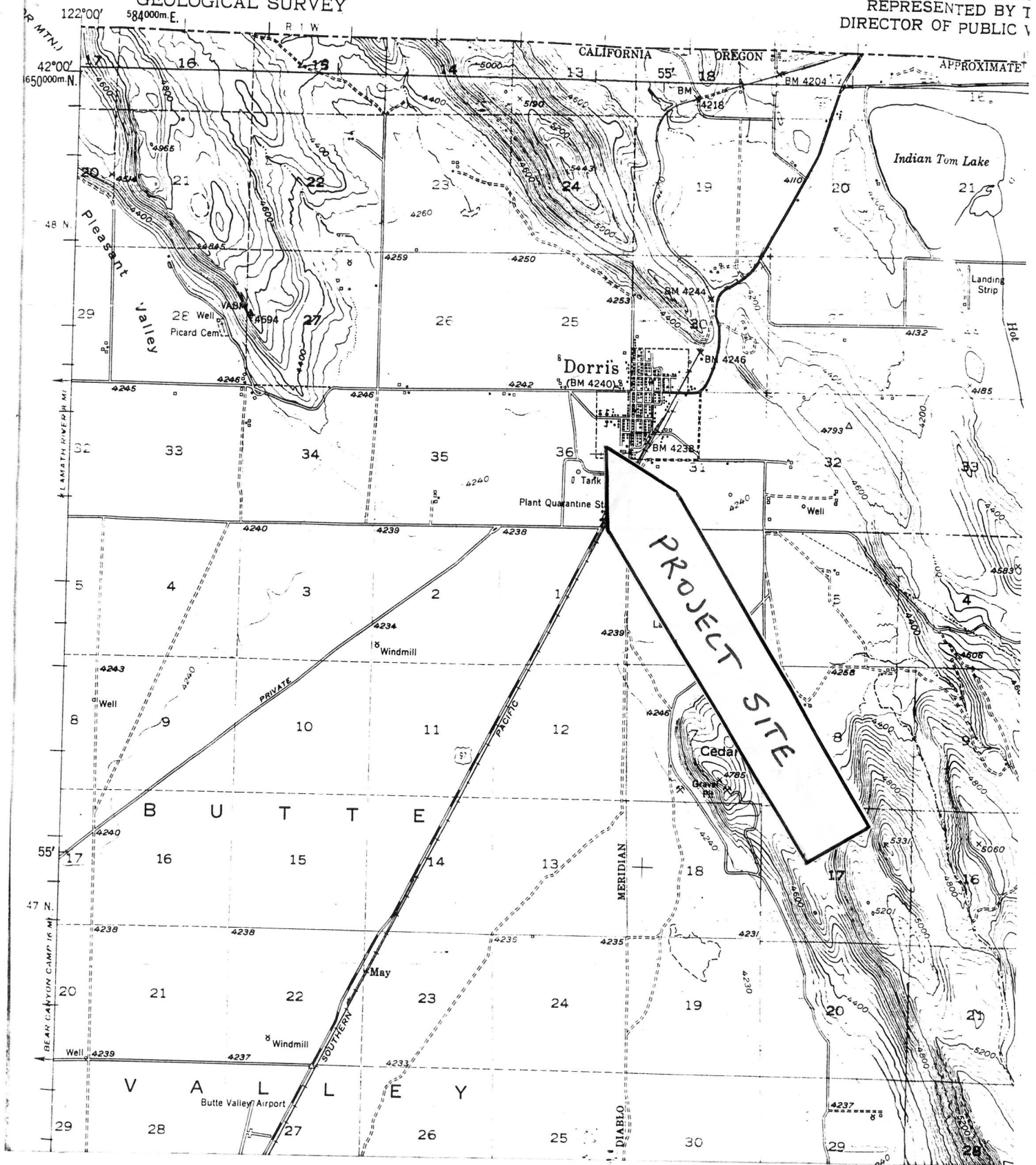
Lee A. Michlin

Lee A. Michlin
Executive Officer

February 26, 1998

UNITED STATES
DEPARTMENT OF THE INTERIOR
GEOLOGICAL SURVEY

STATE OF CALIFORNIA
REPRESENTED BY THE
DIRECTOR OF PUBLIC LANDS



CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
NORTH COAST REGION

ATTACHMENT "A" TO ORDER NO. 98-4

QUADRANGLE Dorris, 15 min.

California Regional Water Quality Control Board
North Coast Region

CONTINGENCY PLANNING AND NOTIFICATION REQUIREMENTS

FOR

ACCIDENTAL SPILLS AND DISCHARGES

ORDER NO. 74-151

The California Regional Water Quality Control Board, North Coast Region, finds that:

1. Section 13225 of the Porter-Cologne Water Quality Act requires the Regional Board to perform general duties to assure positive water quality control.
2. The Regional Board has been advised of situations in which preparations for, and response to accidental discharges and spills have been inadequate.
3. Persons discharging waste or conveying, supplying, storing, or managing wastes or hazardous materials have the primary responsibility for contingency planning, incident reporting and continuous and diligent action to abate the effects of such unintentional or accidental discharge.

THEREFORE, IT IS HEREBY ORDERED THAT:

- I. All persons who discharge wastes or convey, supply, store, or otherwise manage wastes or other hazardous material shall:
 - A. Prepare and submit to this Regional Board, according to a time schedule prescribed by the Executive Officer, a contingency plan defining the following:
 1. Potential locations and/or circumstances under which accidental discharge incidents might be expected to occur,
 2. Possible water quality effects of accidental discharges,
 3. The conceptual plan for cleanup and abatement of accidental discharge incidents, including:
 - a. The individual who will be in charge of cleanup and abatement activities on behalf of the discharger,
 - b. The equipment and manpower available to the discharger to implement the cleanup and abatement plans,
 - B. Immediately report to the Regional Board any accidental discharge incidents. Such notification shall be made by telephone as soon as the responsible person or his agent has knowledge of the incident.
 - C. Immediately begin diligent and continuous action to cleanup and abate the effects of any unintentional or accidental discharge. Such action shall include temporary measures to abate the discharge prior to completing permanent repairs to damaged facilities.